

**IN THE COURT OF THE X ADDL. CITY CIVIL & SESSIONS
JUDGE, BANGALORE (CCH-26)**

Dated this the 2nd day of April, 2024

Present

Smt.**SAVITRI SHIVAPUTRA KUJJI**, B.Com., LL.B.(Spl.),
X Addl. City Civil & Sessions Judge,
Bangalore.

Ex.No.2435/2023

Decree holder: Sri. N. Babu s/o Late Nanjappa
aged about 52 years
r/at: No.194, 14th Cross
Subramanyanagar
Bengaluru-560 021.

v/s

Judgment
Debtor: Smt.S. Manjula
w/o: Srikantegowda
aged about 33 years
r/at: No.6, Shreyas Nilaya
27th Cross, 39th Main road
Near Agasthya Vidya Mandir School
Thimmappanapalya, South Side
Srigandada Kaval, 'D' Group
Bengaluru-560 091.

I.A.No.I

Applicant : Babu N - D.Hr.

v/s

Opponent: Manjula S - J.Dr.

ORDER ON I.A.No.I

This IA is filed by the applicant/D.Hr U/S 151 CPC seeking for issue of temporary injunction against the J.Dr restraining her from alienating the schedule properties pending disposal of this petition.

2. It has been urged in the affidavit of the D.Hr filed in support of IA that he has filed the present Execution Petition for recovery of the money awarded in C.C.No.11306/2020 under

which the J.Dr is liable to pay Rs.19,00,000/- as per the award passed in Lok Adalath in a proceeding u/s 138 of Negotiable Instrument Act. It is further urged that the Court while disposing off the case, had granted liberty to the D.Hr to recover the said amount by executing the said order before the appropriate Court of Law and as such this Court has jurisdiction to deal with the present matter. It is further urged that the matter was settled through compromise before the Lok Adalath held on 27.03.2021 wherein the J.Dr had agreed to pay the award amount within four months and the agreed amount was Rs.19,00,000/- which was the remaining balance amount which was agreed to be paid within four months. However it is alleged that since the J.Dr has failed to pay even the first installment amount of Rs.20,00,000/-, she is due to pay Rs.20,00,000/- to the D.Hr. It is further alleged that now in order to avoid the said payment she is attempting to alienate the schedule property to third parties. The applicant has further alleged that after issuance of notice of the present petition, the J.Dr was not present before the Court and accordingly she has been placed absent. It is further alleged that thereafter when the Court Ameen went to attach the moveables belonging to the J.Dr under the attachment warrant issued by this Court, on that day the J.Dr paid Rs.7,00,000/- to D.Hr in front of the Court Bailiff and counsel for D.Hr and thereafter on 21.12.2023 once again warrant was issued to attach the moveables of the J.Dr and even on the subsequent dates on 17.12.2024 the same warrant was re-issued, but thereafter when the warrant was again re-issued on 20.03.2024 J.Dr left the house and could not be secured. It is further urged that the D.Hr has already placed records before the Court pertaining to immoveable properties belonging to the J.Dr which she is attempting to alienate and has already entered into sale agreement with one Smt.Manjula and Ashok Kumar under a sale agreement

dated 07.02.2024. Therefore the D.Hr has urged that since the J.Dr is yet to pay the remaining balance amount of Rs.13,00,000/-, if she is successful in disposing of her immoveable property, then it would be difficult for the D.Hr to recover the dues. Hence the D.Hr has urged that since he has got prima-facie case and balance of convenience in his favour, he has sought for the issue of temporary injunction order against the J.Dr.

3. It is revealed from the records that despite service of cause notice, the J.Dr has not attempted to appear before the Court and accordingly she has been placed absent. Thereafter attachment warrant of moveables came to be issued by this Court and even on the subsequent date of hearing attachment warrant of immoveable properties has been issued. Since the J.Dr has not attempted to contest the matter, this Court has to look into the grounds urged by the applicant under the present IA.

4. Heard on IA and perused the grounds urged therein.

5. On hearing and on perusal of the materials on record, the following points arise for consideration of the Court:-

- 1) Whether the applicant has made out prima-facie grounds to seek the relief of temporary injunctive order ?**
- 2) Whether balance of convenience lies in his favour?**
- 3) To whom the irreparable loss or hardship would be caused in case of grant of or refusal of T.I.?**
- 4) What order?**

6. The findings of this Court on the above points are as under:-

Point No.1 : In the affirmative

Point No.2 : In favour of the applicant

Point No.3 : To the applicant in case of refusal
of T.I.

Point No.4 : As per final order, for the following:

REASONS

7. **Point Nos.1 to 3:-** Since all these points are interconnected, they are tried together to avoid repetition of facts. It is the specific ground urged by the applicant/D.Hr under the present IA that though he has filed the present EP to recover the award amount passed in C.C.No.11306/2020 for Rs.19,00,000/-, but he is yet to recover the entire dues. According to his claim, the J.Dr has committed default in complying with the terms of compromise which were agreed upon the Lok Adalath and therefore she is liable to pay Rs.20,00,000/- towards the claim amount. It is the further claim of the applicant that when for the first time the attachment warrant of moveables was issued against her, she paid Rs.7,00,000/- before the Court Bailiff in the presence of D.Hr and his counsel and thereafter she failed to clear the dues despite issuance of the warrants against her. However now it is urged by the applicant that as already discussed supra, this Court has issued attachment warrant of immoveable properties of the J.Dr, but now she is attempting to alienate the said property by entering into a sale agreement dated 07.02.2024 in favour of one Manjula and Ashok Kumar. The copy of the said sale agreement is also produced before the Court by the applicant along with encumbrance certificate pertaining to the schedule property which has been ordered to be attached by this Court. These allegations have remained uncontroverted by the J.Dr since she has not appeared before this Court to contest the matter. Therefore, from the materials placed on record it could safely be held that the

applicant has made out prima-facie grounds to seek the temporary injunctive relief.

8. As regards the balance of convenience, certainly it is shown to be leaning in favour of the applicant rather than the J.Dr, because it is to be noted that this is an execution proceeding filed by the applicant in order to execute the award passed in the criminal case before the Lok Adalath. It is also to be noted that the very part payment made by the J.Dr during the issuance of warrant itself clearly indicates that she has accepted her liability covered under the present EP. Even the copy of the Joint Memo which was moved by the parties in the said criminal case which is produced by the applicant clearly indicates that the J.Dr had agreed to pay Rs.20,00,000/- within four months from the date of the said award. However since she has committed default in complying with the said terms of compromise, the present EP came to be filed. Therefore considering these aspects and the admission of her liability by the J.Dr., it could be held that even the balance of conveniences lies in favour of the applicant.

9. As regards the issue of irreparable loss or hardship, certainly it would be caused to the applicant/D.Hr in case the temporary injunctive relief is denied, because as discussed above, the copy of the sale agreement dated 07.02.2024 produced before the Court clearly shows that during the pendency of this proceeding the J.Dr has attempted to dispose of the said immoveable property which was ordered to be attached by this Court by entering into the said sale agreement with the said purchasers. The said transaction is also reflected in the encumbrance certificate which is produced before the Court. This conduct of the J.Dr clearly indicates her deliberate attempt of

disposing of the property in order to evade execution of the said warrant. Therefore as the J.Dr is yet to clear the outstanding dues, in case she is alleged to alienated the said property, the D.Hr would be put to irreparable loss or hardship and he would not be able to recover the dues from her. Therefore in the facts and circumstances of the case, this court opines that it is a fit case where this Court can exercise its discretion in the grant of temporary injunctive relief as sought for. Hence all these points are answered in favour of the applicant.

10. **Point No.4:-** In view of the findings given on the above points and the facts and circumstances of the case, the parties to this IA are directed to bear their own cost of litigation of this IA. In the result, the Court hereby proceeds to pass the following:-

ORDER

**I.A.No.I filed by the applicant/D.Hr u/s 151
CPC is hereby allowed.**

**The J.Dr is hereby restrained by an order of
temporary injunction from alienating the IA
schedule property in any manner to any third
parties pending disposal of the execution
petition.**

Parties to bear their own cost.

**The above order is however subject to
cancellation, variation or modification if
necessary, during the course of the proceeding.**

(Dictated to the Stenographer Grade-I, transcribed by him on Computer, carried out corrections, print out taken and then pronounced in the open Court on this the **2nd day of April, 2024**)

(SAVITRI SHIVAPUTRA KUJJI)
X Addl. City Civil & Sessions Judge
Bengaluru.